Legal Protection of Digital Property

Lecture 10

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Patent Infringement: s.73

- for product invention, patent infringed by a 3rd party who does any of the following
  - making, putting on the market, using or importing the product; or
  - stocking the product, whether for putting it on the market (in HK or elsewhere) or otherwise

- for process invention, patent infringed by a 3rd party who does any of the following
  - using the process; or
  - offering the process for use in HK when the 3rd party (ie. offeror) knows, or it is obvious to a reasonable person, that the use of the process is prohibited; or
  - putting on market, using, importing or stocking any product obtained **directly** by means of the process

NB. Standard patentee may sue for past infringing acts occurring after the standard patent application was published in HK, but the right to sue only arises after the standard patent has been granted: PO, ss.88(1), (3).

NB. Proving infringement is not straightforward, as the defendant may come up with a variant of the patentee's invention to make it look like it is outside the patentee's claim.

Basic Question on Infringement

- is defendant's product or process same as that of plaintiff (patentee)? ie. does defendant's product or process fall within plaintiff's claims?

NB. Involves construction of plaintiff's claims.

NB. Court will compare the sets of essential elements (also called "essential integers") of the subject matters in question. If defendant's subject matter is same as patentee's invention AND has included the same set of essential elements, then patent infringement.

Q: What if defendant uses variants of an essential element? Would the variants still fall within patentee's claims?

- earlier test on whether a variant falls within claims: *Improver v Remington Consumer Products* [1990] FSR 181
  - P's claim: rotating helical spring for removing hair, and covers all variants within the range of equivalency of the claims
  - D's product consists of a rotating rubber tube with partly cut through slits
  - held, equivalence clause not broad enough to cover rubber tube
  - thus D's product not within P's claims!

NB. German and Dutch view of P's claim in *Improver:*

- **the inventive concept covers anything that, if rotated at high speed, can pluck out hair**
- **this includes not only a helical spring but also a rubber tube with partly cut through slits**
- **thus D's product within P's claim**

NB. Decision opposite to that of the UK!

- latest test: *Actavis UK v Eli Lilly* [2017] UKSC 48 **(*RR: press summary)**

Q1. Notwithstanding that the variant is not within the literal meaning of the patent claims, does the variant achieve substantially the **same result** in substantially the **same way** as the invention?

- ✓ if answer is no, variant is outside claims
- ✓ if answer is **yes**, go to Q2

Q2. Would it be obvious to the skilled person, **reading the patent at the priority date, but knowing that the variant achieves substantially the same result as the invention,** that it does so in substantially the same way as the invention?

- ✓ if answer is no, variant is outside claims
- ✓ if answer is **yes**, go to Q3

NB. Q2 is a hypothetical q ie. the skilled person is assumed to know the variant at priority date even when the variant is based on developments AFTER priority date!

Q3. Would the skilled person have concluded that the patentee nonetheless intended strict compliance with the literal meaning of the relevant claims of the patent was an essential requirement of the invention?

- ✓ if answer is yes, variant outside claims
- ✓ if answer is **no**, variant within claims

NB. Q3 requires the skilled person to consider whether the patentee's claim is <u>an essential part of the inventive concept</u>. If yes, strict compliance is intended. If no, strict compliance is not intended.

E1: X has obtained a standard patent for a solar energy car. X's invention is claimed as "a car driven by efficient solar energy collected by a foil installed at the top right of the car and inclined at 45°". Y manufactures a similar car. The foil in Y's car is installed at the top left of the car and inclined at 40°. Any infringements?

E2: As in E1. The foil in Y's car is controlled by a computer program which automatically adjusts the inclination of the foil according to the direction of sunlight.

Exceptions: s.75

- acts done privately for non-commercial purposes
  - does not apply if for dual purposes and one is commercial
- acts done for experimental purposes
  - can be for a commercial end
  - but must be for discovering something unknown and not merely verifying that the invention works as claimed

Remedies

- primarily civil remedies such as injunction (most important), damages, account of profits

Recommended Reading

- Press summary of *Actavis UK v Eli Lilly* [2017] UKSC 48